

Retailer Routine Monitoring

Policy:

- Each vendor will receive an in-person monitoring visit that includes a contemporaneous opportunity for questions and answers at least once during their three-year agreement period.
- Annually, at least 5% of WIC-authorized Colorado WIC vendors will receive a monitoring visit.

Regulation: 7 CFR 246.12

Procedure/Additional Guidance:

Retailer Routine Monitoring is delegated to the Local WIC Agencies, specifically the Local Agency Retailer Coordinator (LARC) role/position. At a minimum, WIC-approved stores will be monitored once during their three-year agreement period. Monitoring visits will include both training components and problem identification activities.

Military commissaries are exempt from formal monitoring visits. Specifically, unless invited, WIC staff members are not required to monitor military commissaries. If problems occur at a commissary, staff can request a monitoring visit, however, the commissary has the right to refuse. Farmers will be monitored for compliance with federal regulations.

The State WIC Benefit Delivery Unit (BDU) will provide supervision and instruction to ensure the uniformity and quality of vendor monitoring. This is achieved through the required LARC 101 Training as well as quality assurance activities conducted by the WIC Vendor Specialist. The WIC Vendor Specialist position reviews each and every Retailer Routine Monitoring Report submitted by the LARC and enters the visits and results into our MIS. The BDU will monitor the types and levels of non-compliance among authorized vendors and take corrective actions, as appropriate.

The BDU is available to work with LARC to determine which stores will be visited. Each store must receive at least one monitoring visit from the LARC within the course of each three-year contract period, with no more than three years between the store's last WIC monitoring visit. The State Agency requires that local agencies monitor all stores in their service area during the 3-year contract period. At the start of every new 3-year contract period, the State Office will provide the spreadsheet to help local agencies determine their monitoring schedule plan.

Scheduling and Conducting a Retail Monitoring Visit

For details, please review the Retailer Routine Monitoring Procedures and Report. This report provides the content and steps of the monitoring visit. The LARC will coordinate a time and date for a Retailer Routine Monitoring visit with a store manager. This ensures they are aware of the upcoming visit. The manager can either attend or identify someone else to attend as the store representative. This representative is responsible for ensuring that all personnel involved with WIC transactions are trained.

The LARC will inform the store representative that the following items will be reviewed during the visit: stocking of WIC items, prices on shelves for WIC items, the level of training and preparation provided to cashiers, gathering their input, and gathering feedback for WIC.

Determining Compliance

The store is to be found in compliance if no violations are found. The store is to be found out of compliance if one or more violations (as detailed in the Retailer Routine Monitoring Report) are found. Examples of violations are: WIC cashier training is not available/not documented/not conducted, stocking infant formula past the "use by" date, minimum stock levels not met, etc., as detailed in the *Vendor Handbook*.

Documenting and Communicating Compliance

Vendors Found In-Compliance:

If the store is found to be in compliance, the LARC will conduct each of the following three actions:

1. Make and provide a copy of the monitoring report for the store during the visit. (The LARC may also send a copy of the report to the store within 14 days of the visit).
2. Send a completed copy of both the Monitoring Report and the Shelf Survey to the State WIC Program within three business days of the visit.
3. Keep a copy of the Monitoring Report in the clinic vendor file for at least six (6) years.

Vendors Found Out of Compliance:

Sanctions and/or violation points will be issued for non-compliance as outlined in Program Violations, in the *Vendor Handbook* and documented in the monitoring report. If the store is found to be out of compliance, the LARC will conduct each of the following actions:

1. Obtain a Corrective Action Plan (CAP) (if required): Ask the store contact/manager to design and write out a corrective action plan on the monitoring report at the conclusion of the monitoring visit. The store must submit evidence that they have *enacted* the CAP within two weeks of the monitoring visit.
2. Copy to the Store - Provide a copy of the report for the store to keep in their WIC Manual.
3. Copy to the State - Send a copy of the Monitoring Report and the shelf survey to the State WIC Office. Scan and email the materials if possible.
4. Keep a copy of the Monitoring Report in the clinic vendor file for at least six (6) years.
5. As appropriate, follow up with the store to ensure corrective action.

The BDU will work with LARC in communication with the vendor regarding serious Program violations. This may include phone consultation from the State WIC Office, sending the *Vendor Handbook* or other training materials, making additional visits to the store, and/or conducting compliance activities.